

**ONTARIO
SUPERIOR COURT OF JUSTICE
(SMALL CLAIMS COURT)**

B E T W E E N:	)	
	)	
MISS E. (ESTHER) KRAUCK	)	Ms. E.M. Krauck
	)	Self-Represented
Plaintiff	)	
-and-	)	
	)	
SHOPPERS DRUG MART	)	Ms. Lida Moazzam
	)	Student-at-Law for the Defendant
Defendant	)	
	)	
	)	Heard: January 20, 2014

REASONS FOR DECISION

1. This is a motion by the plaintiff to set aside the clerk's dismissal of the action for delay, dated June 18, 2012. The motion is dismissed for the following reasons.
2. The plaintiff claims damages of \$25,000 arising from a slip and fall incident alleged to have occurred in the defendant's store. She does not know when that incident occurred but she claims to have slipped on a patch of oil. Her claim was issued on June 24, 2011.
3. There was a settlement conference on November 21, 2011, at which time Deputy Judge McGill ordered the plaintiff to produce certain medical documents and a breakdown of her damages claim, by February 28, 2012. The parties disagree over whether the plaintiff complied in full with that order and for present purposes I will give her the benefit of any doubt on that point and assume she did comply with that order.
4. The handwritten claim fails to disclose a reasonable cause of action. As became apparent

from her submissions, the plaintiff appears to believe that she need only prove a loss and a judgment in her favour must then result. That may explain why her claim fails to make any allegations of negligence or particulars of negligence and therefore fails to disclose a reasonable cause of action.

5. It is well-established that occupiers are not insurers of any and every loss which might occur on their property: see *Waldick v. Malcolm* (1989), 70 O.R. (2d) 717 (C.A.), affirmed [1991] 2 S.C.R. 456. A plaintiff in this type of case bears the onus to prove that the defendant failed to take reasonable care within the meaning of s. 3(1) of the *Occupiers' Liability Act*, R.S.O. 1990, c. O.2.
6. Despite the plaintiff's apparent view of the law, the law reports contain many examples of plaintiffs who slipped and fell in retail stores and whose claims are dismissed because they failed to prove liability: see for example *Kerr v. Loblaw's Inc.* (2007), 224 O.A.C. 56 (C.A.). I note that the plaintiff has no supporting expert evidence on liability. That does not improve her prospects for a potential trial judgment in her favour.
7. It is apparent therefore that the plaintiff has failed to plead a reasonable cause of action. The case stands dismissed for delay and it is now 2.5 years since it was commenced. From this court's perspective, an action in Small Claims Court should generally be concluded within about one year from commencement. The delay in this case is inordinate.
8. The leading case dealing with a motion to set aside a clerk's dismissal for delay order is *Scaini v. Prochnicki* (2007), 85 O.R. (3d) 179 (C.A.). In this case, the plaintiff's affidavit evidence is cursory and essentially complains about the lawyers who represented her during the period of approximately December 2011 to February 2012. There is nothing directed at the issues which the court must consider on such a motion as this.
9. I find that the plaintiff has failed to explain her litigation delay. She could have set the

action down for trial at any time after the settlement conference on November 21, 2011. She could have done so within 45 days after issuance of the clerk's notice of approaching dismissal on April 23, 2012. She failed to do so and there is no explanation for that failure.

10. It follows that there is no evidence of inadvertence in her failure to set the action down for trial, nor is there evidence that setting aside the dismissal order will result in no prejudice to the defendant.
11. The dismissal order was made on June 18, 2012. This motion was previously cast as a motion returnable April 29, 2013, which was dismissed because the plaintiff failed to attend the hearing. This present motion was issued on November 28, 2013 and is before the court approximately 1.5 years after the order in question. I find that delay to be inordinate for such a motion in this court.
12. The plaintiff complains that the settlement conference judge ordered her to retain counsel and she was not then and is not now in a position to do so. As is seen from a plain reading of her endorsement, the settlement conference judge made no such order. Indeed the court has no jurisdiction to make such an order. It is obvious that any such oral comment was simply a recommendation, given the legal parameters of an occupiers' liability case may be more than a self-represented layperson can competently address. The fact is that the plaintiff has represented herself for all but about 3 months of the 2.5 year life of this proceeding and she has only herself to blame if in the result she has been poorly represented.
13. Considering the circumstances of this matter contextually, I am not persuaded to set aside the clerk's dismissal order. The motion is dismissed.
14. The defendant requested costs, which generally follow the event. In the absence of special circumstances under rule 15.07, motion costs are limited to \$100 plus

disbursements. I award costs to the defendant consisting of \$100 for motion fees, \$100 for motion disbursements (consisting of travel to and from Toronto), for a total of \$200 all-inclusive, payable by the plaintiff. The clerk's dismissal of the action under Rule 11.1 is a dismissal without costs.

January 22, 2014

Deputy Judge J. Sebastian Winny